

Court No. - 21

Case :- WRIT - C No. - 56723 of 2016

Petitioner :- M/S Totaram Weldmesh Industries
And Another

Respondent :- Pahchimanchal Vidyut Vitran
Nigam Limited And Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Chandan Agarwal

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

M/S Totaram Weldmesh Industries, Ghaziabad through its proprietor Smt. Neelam Gupta is before this Court assailing the impugned order dated 15.7.2016 passed by the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Electricity Urban Distribution Division-6, Ghaziabad-2nd respondent and for direction commanding the respondents not to adopt any coercive measure against the petitioners for recovery including disconnection of electric supply.

Record in question reflects that the petitioner had obtained an electricity connection for a sanctioned load of 54 KVA falling under category LMV-6 with the facility of MRI downloading. The old meter was installed on 19.4.2013 having Current Transformer (CT) ratio of 100/5A i.e. 20 multiplying factor. On the same day a double pole meter was also installed having CT ratio of 100/5A i.e. 20 multiplying factor. It is claimed that the main meter was installed inside the premises of the petitioner having CT ratio i.e. 20 was numbered as 10405391 while double pole meter was installed outside the petitioner's premises having CT ratio i.e. 20 was numbered as 10405392.

On 22.6.2016 a checking was carried out at the premises of the petitioner in which it transpired that MF of main meter i.e. 10405391 was 40 and not 20 and the double pole meter installed outside the petitioner's premises had 3 CTs which were not working/damaged. Consequently, a MRI was done on 22.6.2016 by the Assistant Engineer (Distribution) and Assistant Engineer (Test). On 25.6.2016 the double pole meters CTs were

replaced having CT ratio of 40 instead of 20. Again on 30.6.2016 a checking was carried out at the premises of the petitioner. It was alleged that after MRI downloading it transpired that there was a reversal of current at 'B' Phase of the CT due to wrong fixing of connection and a faulty fixing of connection was discovered and the supply was restored on the said date. Thereafter, the Junior Engineer (Test) had proceeded to submit a report to the 2nd respondent stating that due to application of wrong MF and B Phase current reversal, there had been under billing to the petitioner which has resulted in charging of less units. Consequently, vide order dated 15.7.2016 a demand of Rs.31,22,771/- has been raised. The petitioner has proceeded to move a representation pursuant to Clause 6.5 (b) of U.P. Electricity Supply Code, 2005 (in short, 2005 Code) on 28.7.2016 before the 2nd respondent but till date the application in question has not at all been decided.

Shri Shashi Nandan, Senior Advocate assisted by Shri Mayank Agrawal has vehemently contended that in the present matter, the impugned demand is in violation of the 2005 Code. He has placed his reliance on Clause 6.5 in submitting that if a meter is defective and the consumer agrees to the report, then licensee shall adjust the bill for previous three months, which shall be recoverable in instalments not exceeding 3 months. In the consumer disputes the result, then the defective meter shall be sealed in presence of the consumer but in the present matter, the entire action is in violation of the statutory provisions. At no point of time the respondents have followed the procedure and as such, this Court should come for rescue and reprieve to the petitioner.

On the other hand, Shri Chandan Agrawal, learned counsel for the respondents has vehemently opposed the writ petition and submits that the petitioner is disputing the bill and arrears and as such, he has sufficient relief under Clause 6.5 of the 2005 Code and as such the present writ petition is liable to be dismissed on the ground of efficacious alternative remedy.

Confronted with such situation, Shri Shashi

Nandan, Senior Advocate submits that in response to the impugned demand dated 15.7.2016 the petitioners have already proceeded to move an application dated 28.7.2016 under Clause 6.5 (d) of the 2005 Code before the 2nd respondent. He further submits that on account of disconnection, the petitioners are suffering irreparable loss and injury.

In the aforesaid circumstances, we are of the considered opinion that as per provisions contained under Clause 6.5 (b) of the 2005 Code, in case the petitioners deposit Rs. 6 lacs within a week from today, the electricity connection would be restored and thereafter the 2nd respondent will consider and decide the application so moved by the petitioners expeditiously and preferably within three weeks after affording opportunity of hearing to the petitioner.

With the aforesaid observation/direction, the writ petition stands disposed of.

Order Date :- 30.11.2016

RKP